

**CHAPTER cxli.**

An Act to confirm a Provisional Order under the Sea Fisheries Act 1868 relating to mussel fisheries in the estuary of the River Conway. A.D. 1912.  
[7th August 1912.]

**W**HEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Sea Fisheries Act 1868:

31 & 32 Vict.  
c. 45.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Sea Fisheries (Conway) Provisional Order Confirmation Act 1912. Short title.



A.D. 1912.

SCHEDULE.

## CONWAY MUSSEL FISHERY ORDER 1912.

*Order for the Improvement Maintenance and Regulation of a Mussel Fishery in the Estuary of the River Conway.*

1. The following are the description and limits of the fishery comprised in this Order (herein-after called "the fishery") viz. so much of the foreshore and bed of the estuary of the River Conway containing an area of 3 square miles and 80 square yards or thereabouts as is delineated and defined on a map sealed by the Board of Agriculture and Fisheries (herein-after called "the Board") and marked A 1114/1912 the external boundaries of the said fishery being shown on such map by a line coloured pink.

2. The limits of the fishery shall be marked out in such manner as the Board may from time to time direct.

3. The grantees of this Order are the mayor aldermen and burgesses of the borough of Conway (herein-after called "the Corporation").

4. Save as herein-after provided no person shall dredge rake fish for or take mussels within the fishery without a licence. A licence in that behalf shall be granted by the Corporation to any person who may apply for the same. A licence shall be available only for the period specified therein and for use by the person or persons named in the licence and for the use of such vessel or boat (if any) and such instruments as may be respectively specified therein and no licence shall authorise any person to dredge rake fish for or take mussels at any time or place or in any manner at or in which it is otherwise prohibited to dredge rake fish for or take mussels.

Licences shall be in a form approved by the Board.

Any person dredging raking fishing for or taking mussels within the fishery shall when required by any water-bailiff appointed by the Corporation produce his licence or shall desist from dredging raking fishing for or taking mussels till such licence is produced.

5. The Corporation may from time to time appoint suspend or remove a water-bailiff or water-bailiffs. Every such water-bailiff shall have the following powers (that is to say) he may within the fishery enter any vessel or boat used for fishing therein he may examine the catches fishing implements and gear of any such vessel or boat he may seize mussels illegally taken within the fishery and he may



*Provisional Order Confirmation Act, 1912.*

do all other lawful acts for giving effect to the provisions of this Order and of Part III. of the Sea Fisheries Act 1868. A.D. 1912.

For such purposes he shall be deemed to be a constable and shall have within the fishery and in or about any place of deposit appointed or provided under this Order the same powers and privileges and be subject to the same liabilities as a constable duly appointed has and is subject to in his constablewick at common law or by statute.

Any person considered by a water-bailiff to have offended against any of the provisions of this Order or of any regulations made thereunder shall when required by such water-bailiff state correctly his christian name surname and place of abode.

Any person refusing or omitting when so required to state correctly his name and place of abode or wilfully continuing to offend after having been required by a water-bailiff to desist may be apprehended by any water-bailiff or by any person acting in the presence of and by order of a water-bailiff and conveyed before a justice of the peace to be dealt with according to law.

6. Subject as herein-after provided there shall be paid to the Corporation by way of royalty in respect of mussels taken by any person within the fishery between midnight on any day and the midnight following—

For every cwt. of large mussels or part thereof threepence and for every cwt. of other mussels or part thereof twopence.

The expression "large mussel" means a mussel exceeding three inches in length.

7. The Corporation may from time to time abolish reimpose or vary the royalty payable under or in pursuance of this Order but so that the royalty for the time being imposed by this Order shall not exceed the amount following (that is to say):—

For every cwt. of mussels or part thereof one shilling and sixpence.

Any such reimposition or variation shall be effected by means of a resolution to be made subject to the same confirmation as if it were a regulation made by the Corporation under this Order and no such resolution shall take effect until so confirmed.

8. The whole of the moneys received by the Corporation from royalties or otherwise under this Order shall be applied to the provision and maintenance of places of deposit or the improvement maintenance and regulation of the fishery under the powers of the Sea Fisheries Act 1868.



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9. For the purpose of enforcing payment of the royalties payable under this Order all mussels found or deemed in manner herein-after appearing to be found in the possession of any person who is or has immediately come from within the limits of the fishery shall be deemed to have been taken by such person within those limits until the contrary is proved and all mussels found in any boat vessel cart or vehicle shall be deemed to be found in the possession of the person or persons for the time being using such boat vessel cart or vehicle and all mussels found or deemed to be found in the possession of more than one person shall be deemed to be found in the possession of each of such persons in equal quantities until the contrary is proved.

All mussels taken within the fishery shall be brought to such places at such times as the Corporation may with the approval of the Board prescribe for the purpose of being then and there examined and weighed by a water-bailiff and the royalties shall be paid in such manner and at such times and places as the Corporation with the approval of the Board may appoint.

Any person paying any royalty in accordance with this Order shall forthwith receive a receipt for the same.

The royalties payable under this Order by any person named in a licence shall be payable by and recoverable from any person or persons named in the licence.

10. The Corporation shall from time to time to the satisfaction of the Board appoint or provide in or near the fishery one or more suitable and convenient places as far as possible free from contamination for the deposit of mussels taken within the fishery and intended for sale or consumption as human food for the purpose of allowing such mussels to cleanse themselves and to eliminate matter likely to be or to become dangerous to public health and public notice shall be given by the Corporation of the appointment or provision of such place or places of deposit.

11. Mussels shall not be taken within the fishery for sale or consumption as human food except for the purpose of being forthwith deposited by the person or persons so taking the same at a place appointed or provided by the Corporation for the purpose and if any person shall take mussels within the fishery for sale or consumption as human food and fail to deposit them forthwith at a place so appointed or provided he shall be deemed guilty of the offence of taking mussels in contravention of the restrictions imposed by this Order.

12. Mussels deposited at a place so appointed or provided shall not be taken therefrom until four clear days or such other period as the Board may from time to time by order direct after the deposit and no such mussels intended for sale or consumption as human food shall be taken from an appointed or provided place of deposit without the



written authority of a water-bailiff which shall certify compliance with the provisions of this Article. A.D. 1912.

13. Royalties shall not be payable under this Order unless and until the Board certify that suitable and convenient places of deposit have been provided to their satisfaction.

14. The foregoing provisions of this Order shall not apply to any person dredging raking fishing for or taking mussels at any time for scientific purposes or for stocking or breeding purposes or for bait with the written authority of the Corporation under the hand of the town clerk and in accordance with the conditions contained in such authority.

15. Subject to the provisions of this Article the Corporation may from time to time make regulations to be observed within the whole or any specified part or parts of the fishery and during the whole or any specified part or parts of the year for all or any of the following purposes:—

- (i) For determining the marks to be attached or affixed to or painted on vessels or boats or the sails or gear of vessels or boats used in the fishery the use of which is licensed under this Order and which are not registered under and in pursuance of the Sea Fisheries Act 1868 or the Merchant Shipping Act 1894;
- (ii) For regulating or prohibiting any mode of or the use of any instrument for dredging raking fishing for or taking mussels;
- (iii) For restricting or prohibiting either entirely or subject to any exceptions and regulations the dredging raking fishing for or taking of mussels from any specified area within the fishery during any period specified in the regulation;
- (iv) For fixing the size and condition at or in which mussels may not be removed from the fishery and the mode of determining such size;
- (v) For providing for the re-deposit in specified localities of any mussels the removal of which is prohibited by any regulation;
- (vi) For determining the description of dredges rakes or other fishing instruments to be used in the fishery and the marks to be affixed thereto;
- (vii) For regulating generally the time and manner of dredging raking fishing for or taking mussels and for protecting mussels from injury;
- (viii) For prohibiting the deposit on the fishery of five-fingers otherwise starfish dogwhelks or other natural enemies of mussels



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and for securing the destruction or regulating the disposal of such as may be taken up in fishing;

(ix) For revoking altering suspending or varying any regulation previously made.

Regulations made under this article shall not be of any effect until confirmed by the Board but when so confirmed they shall while they continue in operation have effect as and be deemed to be restrictions imposed or regulations made by this Order.

Before a regulation is confirmed it shall be advertised in such manner as the Board shall direct.

The production of a copy of any regulation or of any resolution by which the royalty is re-imposed or varied purporting to be signed by a Secretary or Assistant Secretary of the Board shall be conclusive evidence of the regulation or resolution and of the due making and confirmation thereof.

Any regulation or resolution shall be revised or varied from time to time when and as required by the Board and any regulation or resolution may at any time be cancelled by the Board and shall thereupon cease to have effect.

16. The Corporation shall render to the Board on or before the 31st day of August in every year or such other day as may be fixed by the Board accounts of their income and expenditure under this Order and shall furnish to the Board all other information required by the Board with reference to the fishery in such form as the Board may from time to time require and shall allow the Board or any person appointed by them in that behalf to inspect the fishery and all books accounts and other documents in the possession of the Corporation relative to the fishery and shall give to the Board or person all such information relating thereto as they or he may require.

17. Nothing in this Order shall affect the power of the Board at any time to make an order or orders conferring a right or rights of several mussel fishery within any portion of the fishery and all the powers and provisions contained in this Order shall be subject to the power of the Board to make such order or orders and to any alteration which may be made thereby or consequent thereon.

18. No buildings erections embankments or other works of a permanent nature required in connexion with the working and carrying on of the fishery under the provisions of this Order shall at any time be commenced or executed by the Corporation within the fishery below high-water mark without the previous sanction and approval in writing of the Board of Trade.

19. Subject to the provisions of section 45 of the Sea Fisheries Act 1868 and of section 2 of the Oyster and Mussel Fisheries Orders



*Provisional Order Confirmation Act, 1912.*

Confirmation Act 1869 (No. 2) this Order shall continue in operation until the expiration of 60 years from its confirmation by Act of Parliament and no longer. A.D. 1912.

20. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

21. Save and so far as may be necessary to give effect to this Order nothing herein contained shall prejudice or affect the rights of the Conway Fishery Board and the Lancashire and Western Sea Fisheries Joint Committee within the limits of their jurisdiction respectively.

22. This Order may be cited as the Conway Mussel Fishery Order 1912.

Made by the Board of Agriculture and Fisheries under the Sea Fisheries Act 1868 and the Acts amending that Act this twenty-first day of May one thousand nine hundred and twelve.

(L.S.)

(Signed)

T. H. ELLIOTT

Secretary.

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